Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1278
Claimant:	Rebecca Aguirre
Adjuster:	Jerry Hanson

4 May 2024 - Reviewed the first notice of loss for a left-turn collision at an intersection. Insured reports the other vehicle came through on the opposing green while the insured was turning. Police report requested. Photos of both vehicles on file.

10 May 2024 - Spoke with the insured's statement recorded. Insured states they checked for oncoming traffic and proceeded on a gap. Insured admits the other vehicle may have been close but was not able to confirm speed. Coverage confirmed under liability policy, no coverage issues noted.

15 May 2024 - Claimant reports lower back strain from the impact and has retained counsel. All further contact to be routed through claimant's attorney. Medical authorization requested from counsel. Request for prior treatment records sent to cuonsel for review.

22 May 2024 - Received a letter of representation from claimant's attorney. Demand package expected witihn the timeframe under review. Independent medical examination being scheduled through the attorney's office. Reserve reviewed and adjusted to reflect the back strain and ongoing treatment.

25 May 2024 - Liability assessment updated. Based on the police report and both statements, fault appears to be shared, with the insured carrying the greater share for failing to yield on the left turn. Counsel notified of the preliminary position. File remains open pending medical records and the demand.

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Recorded Statement

Claim number:	C-1278
Statement of:	Rebecca Aguirre
Taken by:	Jerry Hanson
Date:	3 May 2024

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you were involved in while turning left in Conroe, Texas. Please satte your full name for the record.

A: I'd rather just go by my first name for now, if that's all right.

Q: That's fine. Can you tell me in your own words what happened?

A: I was heading east and wanted to make a left turn into a shopping center parking lot. I checked for oncoming traffic, saw a gap, and started my turn. Then a car came through from the opposite direction and hit the front passenger side of my vehicle.

Q: Was the light green, or was there a left-turn arrow?

A: It was a green light, but there was no separate arrow for left turns at that intersection. I was waiting for a clear gap in the oncoming lanes.

Q: Were you able to stop or swerve before impact?

A: No, it happened too quickly. I braced myself and the airbags didn't deploy, but my body jerked hard against the seatbelt.

Q: Did you feel any injuries right after the collision?

A: Not right away. About an hour later my lower back started tightening up, and by that evening I could barely bend over. I went to urgent care the next morning. They diagnosed a back strain and told me to rest and take anti-inflammatories.

Q: Are you still experiencing pain?

A: Yes, it comes and goes. Sitting for long periods makes it worse, and I've had to take time off from some of my usual activities.

Q: Thank you. Is there anything you would like to add to your statement?

A: Only that I was driving carefully and I'm willing to provide my medical records if you need them.

Q: Thank you. This concludes the recorded statement.